



POLICE DEPARTMENT

December 5, 2011

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Julio Polanco
Tax Registry No. 930970
Patrol Borough Brooklyn North Task Force
Disciplinary Case No. 2010-1202

The above-named member of the Department appeared before me on
October 26, 2011, charged with the following:

1. Said Police Officer Julio Polanco, while assigned to the Patrol Borough Brooklyn North Task Force while on duty, on or about January 29, 2010, within the confines of the 78th Precinct, having taken property into custody did thereafter fail and neglect to properly safeguard said prisoner's personal property. *(As amended)*

P.G. 203-05, Page 1, Paragraph 14 PERFORMANCE ON DUTY GENERAL

2. Said Police Officer Julio Polanco, while assigned to the Patrol Borough Brooklyn North Task Force while on duty, on or about January 29, 2010, did fail and neglect to make memo book entries as required.

P.G. 212-08, Page 1, Paragraph 1(c) ACTIVITY LOG

3. Said Police Officer Julio Polanco, while assigned to the Patrol Borough Brooklyn North Task Force, while on-duty, on or about February 3, 2010, having become aware of an allegation of corruption or other misconduct involving a member of the service, did fail and neglect to notify the Internal Affairs Bureau, as required.

P.G. 207-21, Page 1, Paragraph 1 - ALLEGATIONS OF CORRUPTION AND
SERIOUS MISCONDUCT AGAINST
MEMBERS OF THE SERVICE

The Department was represented by Javier Seymore, Esq., Department Advocate's Office, and Respondent was represented by John Tynan, Esq.

Respondent, through his counsel, entered pleas of guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the mitigation hearing record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent, having pleaded guilty, is found Guilty.

SUMMARY OF EVIDENCE IN MITIGATION

With regard to Specification No. 1, Respondent testified that while he was on duty on the evening of January 28, 2010, he arrested Person A (Person A who was alone in his car, for Driving While Intoxicated (DWI). At 0100 hours on January 29, 2010, he was processing this arrest inside the 78 Precinct, when Person A wife Person B Person B (Person B arrived at the 78 Precinct to obtain possession of Person A car keys and the car. When Person A learned that his wife was present inside the 78 Precinct, he requested that Person B be allowed to take possession of the ring that Person A was wearing. Respondent testified that because Person A had been very cooperative regarding his arrest, he agreed to do Person A this favor. Respondent took the ring from Person A and handed it to Person B. Respondent entered in his Activity Log that he had released Person A ring to Person B and he had Person B sign this entry. Respondent acknowledged that since Person A was wearing his ring when he was arrested and transported to the 78 Precinct, Person A

ring constituted property that Respondent had taken into custody and that this ring should have been properly vouchered along with Person A other personal property. Respondent admitted that by releasing the ring to Person B he had neglected to follow Patrol Guide procedure relating to properly safeguarding his prisoner's personal property.

With regard to Specification No. 2, Respondent testified that because his arrest of Person A occurred near the end of his tour of duty, he "was rushing" to complete the extensive DWI paperwork he needed to finish in order to process this DWI arrest. Although he did enter Person A name on the "pedigree sheet" he prepared, and although he did enter the location where the DWI arrest took place in his memo book entry regarding the arrest, in his rush to complete the DWI paperwork, he forgot to enter Person A name as the arrestee in his memo book entry.

With regard to Specification No. 3, Respondent testified that while he was on-duty on February 3, 2010, Person A entered the 78 Precinct to recover the items of his personal property that Respondent had taken into custody and vouchered. When Person A asked where his ring was, Respondent reminded him that at his request he had released the ring to Person B. Person A told him that Person B had denied that she had ever received the ring from Respondent. Person A then accused Respondent of stealing his ring. Respondent provided Person A with the phone number for the Department's Internal Affairs Bureau (IAB). Respondent testified that he told his supervisor, Sergeant Martino, about Person A allegation, but Martino did not tell him that he had to call IAB and self-report Person A allegation. Respondent testified that he later was told that he should have called IAB personally to report the allegation that Person A had made against him pursuant to the Patrol Guide procedure that any member who becomes aware of an

allegation of corruption or other misconduct involving a member is required to immediately report this to IAB.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 N.Y. 2d 222 (1974).

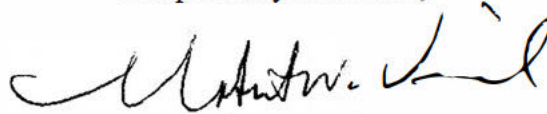
Respondent was appointed to the Department on July 1, 2002. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Respondent has pleaded guilty to the charged misconduct. The Assistant Department Advocate did not contest Respondent's counsel's argument that Respondent's accedence to Person A request that his ring not be vouchered was a favor to a prisoner that had back-fired on the Respondent. Also, regarding Specification No. 3, the Advocate did not dispute Respondent's claim that he provided Person A with the phone number for IAB so that Person A could call IAB. Finally, regarding Specification No. 2, this is not a situation where an officer fails to make any entry in his memo book regarding an arrest he had made. The Advocate did not dispute that Respondent entered the location of the arrest and other pertinent information in his memo book to document this arrest. Moreover, since it is not disputed that Respondent entered Person A name on the DWI arrest paperwork he prepared, Respondent's omission of Person A name from his memo book entry as the person he had arrested constitutes a minor oversight.

The Advocate recommended that Respondent forfeit 15 vacation days. However, having examined the facts and circumstances surrounding Respondent's misconduct, as

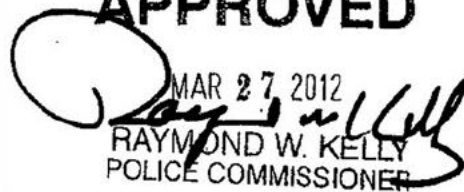
discussed above, and having given consideration to Respondent's candid and contrite testimony, his excellent performance evaluations and his lack of any prior disciplinary record, I believe that a slightly lesser penalty is warranted. Therefore, I recommend that Respondent forfeit ten vacation days.

Respectfully submitted,



Robert W. Vinal
Assistant Deputy Commissioner - Trials

APPROVED



MAR 27 2012
RAYMOND W. KELLY
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner - Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER JULIO POLANCO
TAX REGISTRY NO. 930970
DISCIPLINARY CASE NO. 2010-1202

Respondent received an overall rating of 4.0 on his 2009 annual performance evaluation, 4.0 on his 2008 evaluation, and 4.0 on his 2007 evaluation. He has been awarded one Meritorious Police Duty medal and one Excellent Police Duty medal. [REDACTED]
[REDACTED] He has no formal disciplinary record and no monitoring records

For your consideration.



Robert W. Vinal
Assistant Deputy Commissioner Trials